

SENATE BILL NO. 10—SENATOR CANNIZZARO

NOVEMBER 19, 2025

Referred to Select Committee on Jobs and Economy

SUMMARY—Revises provisions relating to real property.
(BDR 10-38)

FISCAL NOTE: Effect on Local Government: May have Fiscal Impact.
Effect on the State: Yes.

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EXPLANATION – Matter in ***bolded italics*** is new; matter between brackets ~~omitted material~~ is material to be omitted.

AN ACT relating to real property; limiting, with certain exceptions, the total aggregate number of units of residential real property in this State that may be purchased in any 1 calendar year by certain corporate investors; requiring, with certain exceptions, certain corporate investors in residential real property in this State to register with the Securities Division of the Office of the Secretary of State each time before purchasing a unit of residential real property; authorizing the Attorney General to bring certain actions; requiring the Secretary of State to establish requirements for the form and contents of an instrument that creates a life estate; prohibiting a county recorder from recording certain deeds and documents under certain circumstances; and providing other matters properly relating thereto.

Legislative Counsel's Digest:

Section 2 of this bill provides, with certain exceptions, that: (1) the total aggregate number of units of residential real property in this State that may be purchased in any 1 calendar year by corporations, limited-liability companies and any affiliates of such entities must not exceed 100 units; and (2) a corporation, limited-liability company or affiliate of such an entity is prohibited from purchasing any unit of residential real property in this State if, as a result of the purchase, the total aggregate number of units of residential real property purchased in this State during the current calendar year by any corporations, limited-liability companies and affiliates of such entities would exceed 100 units.

Section 2 also requires the Securities Division of the Office of the Secretary of State to create and maintain a registry of corporations, limited-liability companies and any affiliates of such entities that purchase or own residential real property in



this State. **Section 2** requires, with certain exceptions, a corporation, limited-liability company or any affiliate of such an entity to register with the Securities Division each time before the entity purchases any unit of residential real property in this State. **Section 2** exempts from that requirement a corporation, limited-liability company or affiliate of such an entity that owns fewer than 10 units of residential real property in this State. **Section 2:** (1) authorizes the Secretary of State to charge a fee to each such corporation, limited-liability company or affiliate of such an entity; and (2) requires the Secretary of State to adopt regulations necessary to carry out the provisions of **section 2**. For the purposes of **section 2**, the term "corporation" does not include a family trust company or a housing authority. **Section 3** of this bill authorizes the Attorney General, upon the request of the Secretary of State, to bring an action against an entity that violates or proposes to violate the provisions of **section 2** to obtain an injunction or other equitable relief appropriate to ensure compliance with or enforce the provisions of **section 2**.

Existing law sets forth the requirements for recording certain documents that relate to real property. (NRS 111.312) **Section 5** of this bill prohibits a county recorder from filing a deed for a unit of residential real property purchased by a corporation, limited-liability company or affiliate of such an entity unless the entity submits to the county recorder for recording, concurrently with the deed to be recorded, a copy of the certificate of registration for that purchase issued by the Secretary of State pursuant to **section 2**. **Section 5** requires a county recorder to provide to the Secretary of State upon request certain information relating to the requirement imposed by **section 2**.

Section 4 of this bill requires the Secretary of State to adopt regulations establishing requirements for the form and contents of any instrument that creates a life estate. **Section 5** prohibits a county recorder from recording a document that is such an instrument unless the document complies with those requirements.

THE PEOPLE OF THE STATE OF NEVADA, REPRESENTED IN
SENATE AND ASSEMBLY, DO ENACT AS FOLLOWS:

Section 1. Chapter 111 of NRS is hereby amended by adding thereto the provisions set forth as sections 2, 3 and 4 of this act.

Sec. 2. 1. Except as otherwise provided in subsection 2:

(a) The total aggregate number of units of residential real property in this State that may be purchased in any 1 calendar year by corporations, limited-liability companies and affiliates of such entities must not exceed 100 units.

(b) A corporation, limited-liability company or affiliate of such an entity shall not purchase any unit of residential real property in this State if, as a result of the purchase, the total aggregate number of units of residential real property purchased in this State during the current calendar year by corporations, limited-liability companies and affiliates of such entities would exceed 100 units.

2. The provisions of subsection 1 do not apply to:

(a) The intracorporate sale or transfer of units of residential real property;

(b) The sale of newly constructed units of residential real property;



(c) *The sale of a mobile home or manufactured home; or*

(d) *The sale of an apartment building.*

3. *The Securities Division of the Office of the Secretary of State shall create and maintain a registry of corporations, limited-liability companies and affiliates of such entities that purchase or own residential real property in this State. The Securities Division shall make the registry available on the Internet website of the Office of the Secretary of State.*

4. *Except as otherwise provided in this subsection, a corporation, limited-liability company or affiliate of such an entity must register with the Securities Division of the Office of the Secretary of State each time before the entity purchases any unit of residential real property in this State. The requirement to register does not apply to a corporation, limited-liability company or affiliate of such an entity that owns fewer than 10 units of residential real property in this State.*

5. *The Secretary of State shall issue a certificate of registration to each corporation, limited-liability company or affiliate of such an entity that registers pursuant to this section.*

6. *The Secretary of State may charge a fee to each corporation, limited-liability company or affiliate of such an entity that registers with the Securities Division pursuant to subsection 4.*

7. *The Secretary of State shall adopt any regulations necessary to carry out the provisions of this section.*

8. *As used in this section:*

(a) *“Corporation” does not include:*

(1) *A family trust company, as defined in NRS 669.042.*

(2) *A housing authority, as defined in NRS 315.021.*

(b) *“Limited-liability company” has the meaning ascribed to it in NRS 86.061.*

(c) *“Manufactured home” has the meaning ascribed to it in NRS 489.113.*

(d) *“Mobile home” has the meaning ascribed to it in NRS 489.120.*

Sec. 3. 1. *The Attorney General, upon the request of the Secretary of State, may bring an action in any court of competent jurisdiction against an entity that violates or proposes to violate the provisions of section 2 of this act to obtain an injunction or other equitable relief appropriate to ensure compliance with or enforce the provisions of section 2 of this act.*

2. *The provisions of this section do not abrogate or limit the right of any person to bring any civil action pursuant to any other statute or the common law.*



Sec. 4. *The Secretary of State shall adopt regulations establishing requirements for the form and contents of any instrument that creates a life estate.*

Sec. 5. NRS 111.312 is hereby amended to read as follows:

111.312 1. The county recorder shall not record with respect to real property, a notice of completion, a declaration of homestead, a restrictive covenant modification form, a restrictive covenant modification document, a lien or notice of lien, an affidavit of death, a mortgage or deed of trust, any conveyance of real property or instrument in writing setting forth an agreement to convey real property or a notice pursuant to NRS 111.3655 unless the document being recorded contains:

(a) The mailing address of the grantee or, if there is no grantee, the mailing address of the person who is requesting the recording of the document; and

(b) Except as otherwise provided in subsection 2, the assessor's parcel number of the property at the top left corner of the first page of the document, if the county assessor has assigned a parcel number to the property. The parcel number must comply with the current system for numbering parcels used by the county assessor's office. The county recorder is not required to verify that the assessor's parcel number is correct.

2. Any document relating exclusively to the transfer of water rights may be recorded without containing the assessor's parcel number of the property.

3. The county recorder shall not record with respect to real property any deed, including, without limitation:

(a) A grant, bargain and sale deed;

(b) Quitclaim deed;

(c) Warranty deed; or

(d) Trustee's deed upon sale,

↪ unless the document being recorded contains the name and address of the person to whom a statement of the taxes assessed on the real property is to be mailed.

4. The assessor's parcel number shall not be deemed to be a complete legal description of the real property conveyed.

5. Except as otherwise provided in subsection 6, if a document that is being recorded includes a legal description of real property that is provided in metes and bounds, the document must include the name and mailing address of the person who prepared the legal description. The county recorder is not required to verify the accuracy of the name and mailing address of such a person.

6. If a document including the same legal description described in subsection 5 previously has been recorded, the document must include all information necessary to identify and locate the previous



1 recording, but the name and mailing address of the person who
2 prepared the legal description is not required for the document to be
3 recorded. The county recorder is not required to verify the accuracy
4 of the information concerning the previous recording.

5 *7. Except as otherwise provided in subsection 10, if a*
6 *corporation, limited-liability company or affiliate of such an entity*
7 *purchases a unit of residential real property, the county recorder*
8 *shall not record the deed unless the corporation, limited-liability*
9 *company or affiliate of such an entity submits to the county*
10 *recorder for recording, concurrently with the deed to be recorded,*
11 *a copy of the certificate of registration issued by the Secretary of*
12 *State pursuant to section 2 of this act for that purchase and the*
13 *name of the corporation, limited-liability company or affiliate of*
14 *such an entity on the deed matches the name on the certificate of*
15 *registration accompanying the deed.*

16 *8. If a document is an instrument that creates a life estate, the*
17 *county recorder shall not record the document unless the*
18 *document satisfies the requirements established by the Secretary*
19 *of State pursuant to section 4 of this act.*

20 *9. The county recorder shall provide to the Secretary of State,*
21 *upon request, any information collected by the county recorder*
22 *relating to the provisions of subsection 7 that the Secretary of*
23 *State deems necessary to determine whether the purchase of a unit*
24 *of residential real property by a corporation, limited-liability*
25 *company or affiliate of such an entity complies with the provisions*
26 *of section 2 of this act and the regulations adopted pursuant*
27 *thereto.*

28 *10. The provisions of subsection 7 do not apply to a*
29 *corporation, limited-liability company or affiliate of such an entity*
30 *that owns fewer than 10 units of residential real property in this*
31 *State.*

32 *11. As used in this section, the terms “corporation” and*
33 *“limited-liability company” have the meanings ascribed to them in*
34 *section 2 of this act.*

35 **Sec. 6.** This act becomes effective:

36 1. Upon passage and approval for the purposes of adopting
37 regulations and performing any other preparatory administrative
38 tasks that are necessary to carry out the provisions of this act; and

39 2. On July 1, 2026, for all other purposes.



